



COMMERCIAL INVOICE

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901409609

Supplier Kerry Ingredients (M) Sdn Bhd
(Co. No.: 232329-K)
8 Jalan Hasil Dua
81200 JOHOR BAHRU-TAMPOI
MALAYSIA

Bill To CEREAL-TECH PTE LTD
3 WOODLANDS LINK
SINGAPORE 738720
SINGAPORE

Ship To CEREAL-TECH PTE LTD
3 WOODLANDS LINK
SINGAPORE 738720
SINGAPORE
(Acc. 1094487)

Customer PO No.	Invoice No.	Invoice Date	Sales Order No.	Delivery No.	Plant	Curr.	Payment Terms	Incoterms	SST Number	Cust. No.
PO/26/14631	901409609	17.09.2026*	21881092	815054508	P235	SGD	60 Days from Date of Invoice	CIP SINGAPORE,SG		1094487

Item	Kerry Product	Description	Batch No.	Delivery Date	Quantity/ UOM	Gross/Net Weight	Net Price/UOM	Net Value	SST	Total Value
10	20143209	ADMUL SSL 1078 K in 25kg box	0012213998 - 10,000 KG	18.09.2026*	10,000 KG	10,400KG / 10,000KG	2.91 /KG	29,100.00	0.00 0%	29,100.00

SST Breakdown	Net Value	SST Rate	SST Value
	31,719.00	0%	0.00
Total SGD	31,719.00	VAT Total	0.00
MYR	104,958.17		0.00

Totals	10,400KG / 10,000KG	Subtotal Items	29,100.00	0.00	29,100.00
		Surcharges: MISC Surcharge Serv	2,619.00	0%	2,619.00
		Subtotal Surcharges	2,619.00	0.00	2,619.00

31,719.00

1 SGD = 3.30900 MYR

TERMS AND CONDITIONS OF SALE

1. These Terms and Conditions of Sale are these which govern the sale of all Kerry's goods and products (the goods) exclusively notwithstanding any purported variation contained on any order or other written correspondence submitted by you, the Customer, to Kerry unless such variation is expressly agreed to in writing signed by a duly authorised officer of Kerry. Any accepted order constitutes a Contract and cannot be altered or cancelled without Kerry's consent and Kerry reserves full right to enforce for payment against the accepted order.
2. All risks whether insurable or otherwise relating to the goods shall, subject to the Reservation of Title clause set forth at condition 6 below, pass to you, the customer upon delivery of the goods to you or to such place or places as you shall direct. Each part delivery or instalment of the goods shall be deemed to be sold under a separate Contract and no default by the Company in respect of any part delivery or instalment thereof shall entitle you, the Customer, to treat the Contract as repudiated in regard to any balance or instalment remaining deliverable. Kerry reserves the right to subcontract in fulfillment of any of your order or any part thereof.
3. (a) Payment for the goods shall, unless otherwise agreed in writing, be made to Kerry within credit term indicated on Invoice which have been agreed between Kerry and the Customer. All sums due to Kerry shall be paid when due without deduction and payment shall not be deferred or postponed by you, the Customer, on account of any claim, counterclaim or setoff.
(b) Kerry may in the event of you, the Customer, failing to pay sums due in respect of the goods supplied on or before the due date, charge default interest on all overdue balances calculated monthly on the unpaid balance from the due date until payment in full is received by Kerry at a rate which shall be 2% above Kerry's Bank's Indicator Lending Rate (as varied from time to time).
4. (a) A condition precedent to recovery for total or partial loss of or a shortage (including weight) in or damage to any goods or any delay in delivery or despatch or in respect of the quality or condition of any goods supplied by Kerry, every claim must be made in writing to the Company in the first instance immediately on receipt of the goods and confirmed subsequently to Kerry so as to reach Kerry within 3 days of delivery of the goods in question. Kerry must be offered an opportunity to inspect any such goods and to take such samples and perform such test thereon as they may reasonably require.
(b) Where the Customer intends to make a claim against Kerry, both parties shall reserve all rights against any authorized agent or representative whom handling the goods.
5. (a) Where the goods are damaged or defective for any reason including negligence on the part of Kerry, its servants or agents, Kerry's only liability, if any, shall be limited at the option of Kerry to replacement of similar or equivalent products or payment of the cost to replace or acquire the products.
(b) Kerry shall not in any circumstances, whatsoever be liable for any consequential loss incurred by the customer or any other person in respect of the goods supplied hereunder.
(c) Where the goods supplied by Kerry are reprocessed after leaving Kerry's possession, the Customer shall at all times keep Kerry indemnified against any claim for damages, loss or injury to the third parties.
6. (a) All goods supplied to the Customer shall remain as the property of Kerry until the entire purchase price payable thereof has been paid in full by the Customer to Kerry.
(b) Notwithstanding the terms of subclause (a), of this clause in the event of the Customer selling the goods to third parties in the normal course of the Customer's business (but not otherwise) the Customer shall do so as agent of Kerry and an amount equal in value to the proceeds of any such sale shall be held or dealt with by the Customer upon trust for and on behalf of Kerry until the goods have been paid for in full and the Customer is hereby deemed to have assigned to Kerry, absolutely the benefit of any claim (including but not limited to the right to trace the said goods or proceeds of sale thereof) which the Customer has against any third party arising from such sale.
(c) The customer hereby licenses Kerry and its servants and agents to enter onto premises upon which the goods or any of them may be situated for the purposes of inspecting and taking inventory of any of the said goods and/or for the purposes of repossessing the said goods.
7. Each and every clause, subclause and provision shall be separate and severable and enforceable accordingly and the invalidity of any clause of provision as aforesaid shall not affect the enforceability or validity of any other provision.
8. Where products are supplied with a "best before" or "sell by" date, then Kerry shall have no liability for any goods sold after such "best before" or "sell by" date.
9. Kerry shall not be liable for any delay, loss or damage whatsoever arising out of Acts of God, Government Orders, strike, lock outs or other industrial disputes, inability to secure labour, materials or supplies at commercial rates, accidents, plant breakdowns, wars, civil commotion or any other circumstances (whether the foregoing class or Not) beyond the control of Kerry and all contracts are subject to cancellation or variation as may be necessary due to force majeure.
10. Kerry warrants the goods supplied shall be of merchantable quality.
11. Both Kerry and the Customer agree to be bound by local taxation regulations and legislation; and governed by the laws in force from time to time and both parties consent to the non-exclusive jurisdiction of local courts.

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RSPO SC00165

Date Name Signature

BANK: J.P. Morgan Chase Bank Berhad SORT CODE: 10000215 Account Number: 3600410026 BIC: CHASMYKX Correspondent Bank: DBS BANK, SINGAPORE Correspondent BIC: DBSSSGSG

Kerry Ingredients (M) Sdn Bhd (Co. No.: 232329-K) SST: J31-1808-21027576

*All dates are in the format DD.MM.YYYY

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